

service arose from the proof of service, Defendant's evidence would rebut it, as it shows that neither Rebecca Vang nor LIS was acting as Defendant's agent for service of process. Accordingly, the Court finds that Defendant is entitled to relief from default under Code of Civil Procedure section 473(d).

Network asks the Court to dismiss the complaint against it and to impose monetary sanctions against Plaintiff for failure to timely serve the complaint.

The complaint was filed on March 24, 2026. Plaintiff purportedly served it on April 9, 2026 and filed proof of service on April 27, 2026, both within the 60-day period in rule 3.110(b). Rule 3.110 does not address the adequacy or manner of service, only its timing. In any event, rule 3.110(f) permits the Court to set an OSC re: sanctions for a failure to timely serve and file proof of service, but dismissal is not among the sanctions authorized under that provision. (Cf. Cal. Rules of Court, rule 2.30(b) ["If a failure to comply with an applicable rule is the responsibility of counsel and not of the party, any penalty must be imposed on counsel and must not adversely affect the party's cause of action or defense thereto."]; see *Hawks v. Hawks* (2006) 141 Cal.App.4th 1435, 1437 ["a delay of less than two years in service of the summons and complaint is not a ground for dismissal"].) The request to dismiss the complaint against Network is denied.

Network also requests \$1,000 in monetary sanctions. California Rules of Court, rule 2.30(b) authorizes the Court to order a party to pay monetary sanctions for failure without good cause to comply with an applicable rule. As noted above, Plaintiff served the complaint and filed proof of service within the time set by rule 3.110(b) and it is not clear that rule 3.110 is violated where service is timely made but later determined to be defective. Network argues Plaintiff should have consulted the Secretary of State's website or stipulated to set aside the default after being told of the service defects. That is a criticism of Plaintiff's litigation strategy, not evidence that he violated rule 3.110 without good cause under rule 2.30. The request for monetary sanctions is denied. The Court nonetheless encourages the parties to act reasonably going forward.

Disposition

The motion is **granted in part and denied in part**. The May 7, 2026 default against Network Adjusters, Inc. is **hereby set aside**. Network's requests for dismissal of the complaint and for \$1,000 in monetary sanctions are **denied**. Defendant shall prepare the order and serve and file notice of entry of order. Defendant shall file an answer or other responsive pleading within 15 days of the hearing.

14. 9:00 AM CASE NUMBER: MSC21-00659
CASE NAME: TAJ LOCKETT VS BROKER SOLUTIONS INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS NO. 1-3**
FILED BY: LOCKETT, TAJ
TENTATIVE RULING:

After this case was reassigned to Department 16, this motion date was inadvertently not reset. It has been reset for August 5, 2026, at 9:00 am in Department 16.